

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**EVIDENTIARY OBJECTIONS
TO O'CONNELL DECL.**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court’s authority to consider the substance is under Code of Civil Procedure sections 391 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

I. INTRODUCTION

Plaintiff objects to the following portions of the Declaration of Tyler J. O’Connell (served July 21, 2026) and to the characterizations of Exhibits 1 and 2. Objections are stated for the hearing record under Evidence Code sections 210, 350, 352, 702, 800, and 1200, and to preserve error.

II. OBJECTION CHART

Text / characterization			
Material	objected to	Grounds	Ruling
¶ 8	“These new 2025 actions by Plaintiff target Defendants solely for their conduct in litigation.”	Lack of foundation (Evid. Code § 702): counsel lacks personal knowledge of Plaintiff’s subjective purpose. Improper opinion / legal conclusion (Evid. Code §§ 800, 310): “solely” and “target ... for ... litigation” are ultimate legal characterizations reserved for the Court under <i>Park / Baral</i> , not lay or expert opinion of counsel. Speculation.	Sustained / Overruled: -----

Text / characterization		
Material objected to	Grounds	Ruling
¶ 11 (cha-peau) “unmeritorious, unnecessary, frivolous, and harassing litigation activities”	Improper opinion / legal conclusion; speculation; lack of foundation for each adjective as applied to each listed act. Section 391(b)(3) elements are for the Court under <i>Morton</i>, not counsel’s labels.	Sustained / Overruled: -----
¶ 11(a)(i), emails “making threats,” 11(b)(i) “serving frivolous filings,” and/or “threatening to report . . . without justification”	Lack of foundation / incomplete compilation: no methodology for counting, categorization, or exclusion of service/meet-and-confer/scheduling traffic. Speculation as to “without justification.” Improper opinion (“frivolous”). Evid. Code § 352: cumulative and misleading if treated as proof of frivolousness without categorization.	Sustained / Overruled: -----

Text / characterization		
Material objected to	Grounds	Ruling
¶ Discovery and discovery 11(a)(iii) motions characterized (iv), as “burdensome, harass- 11(b)(iii) ing, and unnecessary” and (iv) “frivolous,” and as “pre-cluded as a matter of law” MPA Cross-case attribution of use 801 catalog facts to this of Case No. CGC-25-631802 Decl. ¶ 11(a) while dis- cussing 802 ¶ “repeatedly attempted to 11(a)(v) seek leave to amend” while 11(b)(v) anti-SLAPP pending as abusive	Improper legal conclusion on stay scope under CCP § 425.16(g); lack of founda- tion for purpose of discov- ery (empty-file / claims-file focus); speculation. Incomplete / mislead- ing compilation; wrong- case attribution; lack of foundation for treating ¶ 11(a) as proof of 802 (b)(3) abuse.	Sustained / Overruled: ----- Sustained / Overruled: ----- Sustained / Overruled: -----

Text / characterization		
Material objected to	Grounds	Ruling
¶ “innumerable purported 11(a)(vi)Opposition’ papers . . . far 11(b)(vi)n excess of the single Op- position allowed”	Lack of foundation for “innumerable” and for Code violation without identifying each paper and the ruling thereon; incom- plete compilation; im- proper legal conclusion.	Sustained / Overruled: -----
¶ Filings “prepared with ar- 11(a)(ix)ificial intelligence,” “A.I.- (x), drafted, frivolous filings,” 11(b)(vii)veritable deluge,” approx- (ix)imate “70” / “200” docu- ments	Lack of foundation for AI authorship of any specific filing; counsel is not a qual- ified expert on authorship methodology (Evid. Code § 801). Speculation. Im- proper opinion equating tool use with frivolous- ness. Incomplete compi- lation of docket counts (no methodology; no distinc- tion between Defendant- noticed motion responses and Plaintiff-initiated pa- pers).	Sustained / Overruled: -----

Text / characterization		
Material objected to	Grounds	Ruling
¶ Intention of “circumventing” anti-SLAPP rulings by suing in Contra Costa to “evade” this Court ¶ 12 / Ex. 1	Speculation as to intent; improper opinion; lack of foundation; venue choice is a legal/factual issue for briefing, not counsel’s characterization of evasion. Incomplete / misleading compilation (Evid. Code § 356 / completeness principle): selected excerpts without full threads, without categorization of service vs meet-and-confer vs dispute emails, and with argumentative labeling. Improper opinion (“abusive and harassing”) in the authenticating paragraph. Plaintiff does not object to the Court reviewing specific emails for context, but objects to the compilation characterization as proof of section 391(b)(3) frivolousness.	Sustained / Overruled: ----- Sustained / Overruled: -----

Text / characterization		
Material objected to	Grounds	Ruling
¶ 13 / Exhibit 2 offered as discovery “for which Plaintiff filed motions to compel, deem admitted, and for sanctions, despite Defendant’s pending Anti-SLAPP,” implying frivolous stay violation	Incomplete compilation; lack of foundation for claims-file vs irrelevant discovery content; improper legal conclusion on stay scope; speculation as to purpose. Plaintiff affirmatively notes discovery was directed to claims-file emptiness (see Plaintiff’s Decl. ¶ 17; Exhibit Index Ex. C).	Sustained / Overruled: -----

III. REQUESTED RULINGS

Plaintiff requests that the Court:

1. Sustain the objections in the chart above;
2. Decline to treat counsel’s adjectives (“frivolous,” “harassing,” “A.I.-drafted,” “solely”) as evidence;
3. If any portion of Exhibits 1 or 2 is considered, limit consideration to specific identified writings and reject the incomplete “illustrative” compilation characterizations in ¶¶ 12 and 13;
4. Require any docket or email count offered for section 391(b)(3) purposes to distinguish Defendant-initiated motion practice from Plaintiff’s obligated responses.

Dated: July 22, 2026



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Plaintiff, In Pro Per

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VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona